

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 23, 2018

Honorable Allison M. Danner
Judge of the Superior Court
County of Santa Clara
191 North First Street
San Jose, CA 95113

Re: Martinez, Daniel Alberto
CDC No.: AY8718
Case No.: B1688821
Date of Sentence: September 28, 2017

Dear Honorable Allison M. Danner:

The purpose of this letter is to provide the court with authority to resentence Daniel Alberto Martinez pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Martinez was sentenced in 2017, and was convicted of section 245, subdivision (a)(1), Assault with a deadly Weapon box cutter. The trial court sentenced inmate Martinez on September 28, 2017. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Martinez's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Martinez's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced in accordance with the cited authority.

Sincerely,



SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
First Amended Felony Complaint

cc: Honorable Patricia M. Lucas, Santa Clara County Presiding Judge
Santa Clara District Attorney
Public Defender

**FELONY ABSTRACT OF JUDGMENT—DETERMINATE
SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM**
(Not to be used for multiple count convictions or for 1/3 consecutive sentences)

CR-290.1

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: SANTA CLARA - HALL OF JUSTICE		A48718
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: Daniel Martinez AKA: Daniel Alberto Martinez CII NO.: A32857410 BOOKING NO.: 16041719	DOB: 11/03/96	CASE NUMBER B1688821
FELONY ABSTRACT OF JUDGMENT ☒ PRISON COMMITMENT ☐ COUNTY JAIL COMMITMENT ☐ AMENDED ABSTRACT		
DATE OF HEARING 09/28/17	DEPT. NO. 88	JUDGE Allison M. Danner
CLERK Rosales	REPORTER C. Bagatelos	PROBATION NO. OR PROBATION OFFICER Salas/Yuen ☐ IMMEDIATE SENTENCING
COUNSEL FOR PEOPLE S. Fein		COUNSEL FOR DEFENDANT Hoopes ☒ APPOINTED

1. Defendant was convicted of the commission of the following felony:

COUNT	CODE	SECTION NUMBER	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (L, M, U)	SERIOUS FELONY	VIOLENT FELONY	TIME IMPOSED	
						JURY	COURT	PLEA				YRS	MOS.
2	PC	245(a)(1)	Assault with a deadly weapon-box cutter knife	2016	07/14/17			X	L			4	0

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

COUNT	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	TOTAL
2	PC186.22(b)(1)(C)	10	PC12022.7(a)	3	PC12022(b)(1)	S	13 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	TOTAL
PC667(a)	5					5 0

4. Defendant sentenced: ☐ to county jail per PC 1170(h)(1) or (2) ☒ per PC 667(b)-(i) or PC 1170.12 (strike prior)
☐ to prison per PC 1170(a) or 1170(h)(3) due to ☐ current or prior serious or violent felony ☐ PC 290 or ☐ PC 186.11 enhancement
☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. ☐ Defendant ordered to report to local parole or probation office upon release.

5. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

Restitution Fine(s): \$300 per PC1202.4 (b) forthwith per PC 2085.5 if prison commitment \$300 per PC 1202.45 suspended unless parole is revoked.
\$_____ per PC 1202.44 is now due, probation having been revoked.

Restitution per PC1202.4 (f): ☒ \$_____ ☒ Amount to be determined to ☐ * victim(s) ☐ Restitution Fund
* ☐ Victim name(s), if known, and amount breakdown in item 8, below. * ☐ Victim name(s) in probation officer's report.

Fine(s): \$_____ per PC 1202.5. \$_____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$_____ Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

☒ Court Operations Assess.: \$ 40 per PC 1465.8. ☒ Conviction Assess.: 30 per GC 70373. ☐ Other: \$_____ per (specify): _____

6. TESTING: a. ☒ Compliance with PC 296 verified b. ☐ AIDS per PC 1202.1 c. ☐ other (specify): _____

7. IMMEDIATE SENTENCING: ☐ Probation to prepare and submit a post sentence report to CDCR per PC 1203c. Def't's Race / National Origin _____

8. Other orders (specify): PC29800/30305 adv. CJAF \$129.75. Adv 3 yrs parole/PRCS.

9. TOTAL TIME IMPOSED: _____ 22 0

10. ☐ MANDATORY SUPERVISION: Execution of a portion of the total jail time imposed in item 9 is suspended and deemed a period of mandatory supervision under PC 1170(h)(5)(B) as follows: Suspended portion: _____ Served forthwith: _____

11. ☐ This sentence is to run concurrent with (specify): _____ 12. Registration Required: ☒ per (specify code section): PC186.30

13. Execution of sentence imposed: a. ☒ at initial sentencing hearing. b. ☐ at resentencing per decision on appeal. c. ☐ after revocation of probation.
d. ☐ at resentencing per recall of commitment. (PC 1170(d).) e. ☐ other (specify): _____

DATE SENTENCE PRONOUNCED	CREDIT FOR TIME SPENT IN CUSTODY TOTAL DAYS:	ACTUAL LOCAL TIME	LOCAL CONDUCT CREDITS	TIME SERVED IN STATE INSTITUTION
09/28/17	395		☐ 2933 ☒ 2933.1 ☐ 4019	DMH CDCR CRC [] [] []

15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.
☐ county jail ☐ Other (specify): _____

CLERK OF THE COURT: I hereby certify the foregoing to be a correct abstract of the judgment rendered in this action.

DEPUTY'S SIGNATURE _____ DATE 10/05/17

This form is provided under PC 1213.5 to satisfy the requirements of PC 1212 for determinate sentences. It may be used but must be referred to in this document.